

## **LEVEL III APPEAL — REFERENCE Z005911-061526**

Appeal of the Level II Decision of September 14, 2026

Stephen Ray Jordan, Pro se

### **Specific Disagreement with the Level II Findings**

I disagree with the Level II findings on the following grounds, each of which I preserve for further review.

1. The finding that the first remedy was already satisfied is inconsistent with its own premise. The decision states that the investigation established that, as of March 25, 2026, Iron Horse Aquatics had published its group requirements. March 25, 2026 is the date I requested published advancement criteria. The finding therefore establishes that no such criteria were published before that date, and that every placement decision made during the 2025–2026 season, including the decisions that gave rise to my February 2026 complaint, was made without them. The District cannot rely on a publication that post-dates and responds to the complaint as proof that the complaint lacked merit.

2. The remedy I requested was not publication alone. I requested that objective advancement criteria be published and applied consistently. The decision makes no finding as to consistent application, and no finding that what was published on March 25, 2026 states objective, measurable thresholds rather than general descriptions of each training group. Absent those findings, the remedy has not been addressed.

3. Treating the February 2026 complaint as dispositive is error. That matter was resolved at Level II on May 18, 2026, and the District informed me in writing on May 20 and May 21, 2026 that no Level III review of it was available. A prior proceeding the District closed to further review cannot now be cited as the forum in which this remedy was already addressed.

4. The second remedy was denied without any finding on the conduct alleged. I asked the District to investigate what Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri did, and to impose consequences up to and including termination. The decision denies that remedy on the ground that no evidence supported retaliation, but it makes no finding at all about the conduct itself: the March 27, 2026 communication in which Ms. Howard offered to provide contact information for other clubs that may be better suited to my needs if I continued to be dissatisfied; or the issuance of the July 7, 2026 Summary of Investigation one day after the U.S. Center for SafeSport declined jurisdiction. Whether the District imposes discipline is its decision to make under its personnel policies. Whether that conduct occurred is a question the District has now declined to reach three times.

5. The finding that the consequences were based solely on the June 5, 2026 events is contradicted by the record. The Parent Code of Conduct investigation was opened at 4:35 p.m. on June 9, 2026. My Petition for Review was filed with the Texas Education Agency at 6:32 p.m. the same day. The U.S. Center for SafeSport declined jurisdiction on July 6, 2026, and the Summary of Investigation issued the following day. The decision offers no explanation for either sequence.

6. The retaliation analysis uses the wrong temporal anchor. My protected activity begins no later than February 26, 2026, with Lighthouse Services complaint 9022620263313, and continues through the Level I and Level II proceedings and the Petition for Review. Measuring from the June 15, 2026 filing excludes the activity that precedes every adverse action at issue.

7. The findings rest on evidence I have never been permitted to examine. The decision relies on information gathered from multiple witnesses whose identities, statements, and dates have not been disclosed to me. This is the third consecutive determination in this matter resting on records never produced. I renew my request for that material and object to any finding that depends on it.

8. The decision does not resolve which policy governs. My Level II appeal argued as its first ground that the July 20, 2026 finding applied FFH (LOCAL), the policy governing discrimination and harassment complaints, to a parent's grievance concerning the District's administration of its own program. The Level II conference notice described the complaint as filed under FNG/FFH. The decision applies FFH without deciding the question. Three decision-makers have now declined to answer it.

9. The decision does not address the grounds stated in the appeal. My Level II appeal stated seven grounds. The decision addresses two requested remedies and reaches none of the grounds, including the conflict arising from Ms. Rucker's service as the Level II hearing officer on the underlying grievance before investigating retaliation arising from her own decision, and the denial of accuser identities under FERPA, which protects student education records and does not apply to adult volunteers, meet officials, or venue staff.

10. The assignment of this appeal was objected to and the objection was not ruled on. I objected in writing on August 24, 2026, under Texas Education Code Section 26.011(c)(6) and (c)(7), to review by a third consecutive Athletics department official. FNG (LOCAL) assigns Level II review to the Superintendent or the Superintendent's designee. I asked in writing who designated the hearing officer and under what authority, and whether he had prior involvement in the underlying matters. Neither question was answered.

I preserve all objections previously stated and raise these grounds for review at Level III and in any subsequent proceeding.

### **Remedies Sought**

I seek the following remedies at Level III.

1. Vacate the decisions below. Set aside the Level II decision of September 14, 2026, the Level I decision of August 12, 2026, and the finding of July 20, 2026.

2. Rescind the July 7, 2026 suspension. Withdraw the Summary of Investigation issued July 7, 2026, restore my access to Iron Horse Aquatics events and District facilities, and withdraw the associated reference to criminal trespass enforcement. That sanction remains in effect through December 31, 2026 and rests on a finding I have never been permitted to examine.

3. Determine which policy governs. Direct a written determination as to whether this grievance proceeds under FNG (LOCAL) or FFH (LOCAL). The July 20, 2026 finding applied FFH, the policy governing discrimination and harassment complaints. The Level II conference notice

described the complaint as filed under FNG/FFH. Three decision-makers have declined to resolve the question.

4. Order reinvestigation outside the Athletics department. Direct that the grievance be reinvestigated under the correct policy framework by a decision-maker with no prior role in the underlying grievance and outside the Athletics department, consistent with Texas Education Code Section 26.011(c)(6) and (c)(7) and with FNG (LOCAL), which assigns Level II review to the Superintendent or the Superintendent's designee.

5. Order production of the records relied upon. Direct that I be provided the witness identities, statements, and dates gathered in the investigations underlying the July 7, July 20, and September 14 determinations, together with the signature and acknowledgment records on the Parent Code of Conduct and Iron Horse Aquatics agreements and the version of the handbook under which the July 7 sanction was imposed. Direct that any finding resting on records not produced be set aside.

6. Correct the temporal anchor. Direct that the protected activity in any reinvestigation be measured from February 26, 2026, the date of Lighthouse Services complaint 9022620263313, rather than from June 15, 2026.

7. Terminate the employees responsible. I ask the Board to find that Ms. Howard, Mr. Franks, Mr. Sato, and Mr. Bilgri retaliated against me for using the District's grievance process, and to terminate their employment.

The conduct is documented. On March 27, 2026, three days after the Level I response, Ms. Howard wrote to me: "Please reach out to your son's coach moving forward. If you continue to be dissatisfied, we can provide you with contact information for other clubs in the area that may be better suited to your needs." She copied the Complaint Resolution office. A District employee conditioned an offer to help a family leave a public program on the parent's continued use of the District's own complaint process.

On July 7, 2026, one day after the U.S. Center for SafeSport declined jurisdiction, those four employees issued a Summary of Investigation barring me from every Iron Horse Aquatics event through December 31, 2026 and invoking criminal trespass enforcement. The underlying investigation was opened at 4:35 p.m. on June 9, 2026, two hours before I filed a Petition for Review with the Texas Education Agency. No level below has offered any explanation for either sequence.

Lesser discipline does not answer this conduct. These four employees supervise children in a District facility. A parent who used the process the District publishes was investigated, sanctioned, and threatened with arrest on evidence he has never been permitted to see, from accusers he has never been permitted to name. Employees who respond to a complaint that way cannot be left in positions of authority over students and families who may need to file one. Anything short of termination tells every other family in that program what using the grievance process costs.

8. Publish and apply objective advancement criteria. Direct that Iron Horse Aquatics publish objective, measurable advancement criteria applicable to every family, apply them consistently, and confirm in writing the date on which such criteria were first published.

9. Provide a functioning appeal mechanism. Direct written confirmation of the filing method the District will accept for appeals under FNG (LOCAL). The District's complaint portal failed during three separate appeal windows: May 19 and 20, July 20 and 21, and August 18, 2026.

10. Issue a written decision addressing each ground. Direct that the Board's written decision address each ground raised in this appeal rather than the requested remedies alone, and that this appeal be heard by the Board in accordance with FNG (LOCAL), which provides that the Board shall consider the appeal and shall hold a meeting no later than 60 calendar days after the Level II decision.

I preserve all prior objections and reserve all rights in any other forum in which related matters are pending.

Stephen Ray Jordan, Pro se  
13054 Cinderella Lane, Frisco, Texas 75035  
srjordan@gmail.com | (972) 403-1231